

STATE OF COLORADO

STATE GRIEVANCE BOARD

Amos D. Martinez
Administrator

1560 Broadway, Suite 1340
Denver, CO 80202
(303) 894-7766

Department of Regulatory Agencies

Joseph A. Garcia
Executive Director

Division of Registrations
Bruce M. Douglas, Director



Roy Romer
Governor

April 19, 1995

Duane Mullner, M.Th., LPC

RE: Complaint Filed by P.L.
SGB #95.002(C)
Letter of Admonition

Dear Mr. Mullner:

At its meeting on March 10, 1995, the 11-member Colorado State Grievance Board (Board) reviewed the results of its investigation concerning the complaint filed against you by P.L.

The Board found the psychotherapy services you provided to P.L.'s family warranted formal disciplinary action concerning your license to practice professional counseling and your psychotherapy practice in Colorado.

In the opinion of the Board, there are reasonable grounds to believe you failed to meet the generally-accepted standards of practice and violated section 12-43-704(1)(g), C.R.S. Specifically, the Board determined that:

You made a recommendation to the Court for unsupervised visits between a non-custodial mother and a minor child without sufficient data to support this recommendation. Specifically, there is no evidence that you contacted the minor child.

You failed to recognize the difference between being an advocate for M.M. versus being a therapist for M.M. and the potential for a dual relationship.

The Board strongly encourages you review your professional code of ethics and the mental health licensing statute.

By this letter, the Board takes the formal disciplinary action of admonishing you for the conduct specified above.

Duane Mullner, M.Th., LPC
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In accordance with section 12-43-705 (3)(d), C.R.S., the Board advises you that you have the right to make a written request that the Board initiate formal disciplinary proceedings in order to adjudicate the conduct or acts upon which this letter is based. You must make your written request within twenty (20) days after receipt of this letter and address your request to Amos D. Martinez, Program Administrator, at the above letterhead address. If you make a timely request, the Board will deem this letter of admonition vacated and may proceed with disciplinary and/or injunctive proceedings in accordance with section 12-43-705 (2), C.R.S., and applicable rules.

If this letter is not vacated, it will become the final agency action in this matter.

Sincerely,

FOR THE COLORADO STATE GRIEVANCE BOARD

A handwritten signature in black ink, appearing to read "Daniel Robinson", written over the printed name.

Daniel Robinson
Board Chair

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